
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER GRANTING
DEFENDANT’S MOTION FOR
ORDER TO SHOW CAUSE (DOCKET
504) AND DENYING REQUEST TO
COMPEL DISCOVERY**

Case No. 251403576

Judge Tony F. Graf, Jr.

Defendant Tyler Robinson filed a Motion for Order to Show Cause (Dkt. 504) seeking an order requiring Utah County Attorney Jeffrey S. Gray and Deputy Utah County Attorney Chris Ballard to appear in court and show cause why they should not be held in contempt for violating the Pre-Trial and Trial Publicity Order (Dkt. 23, 242), originally issued on September 16, 2025, and amended on December 15, 2025. *See* Utah Code § 78B-6-301(5) (declaring disobedience of court order to be contempt). The motion is fully briefed. The court heard oral arguments on May 19, 2026. Having considered the papers and oral arguments, the court now rules and orders as follows.

Defendant alleges that the conduct occurred “outside the immediate view and presence of the court.” § 78B-6-302(2). Thus, section 78B-6-302(2) requires Defendant to file “an affidavit or statement” detailing “the facts constituting the contempt,” which statement, together with a subsequent court order, forms the basis of the contempt charge. *See Von Hake v. Thomas*, 759 P.2d 1162, 1170 (Utah 1988) (noting due process is satisfied through fact-specific affidavit and order), *superseded on other grounds by statute as stated in State v. Hurst*, 821 P.2d 467 (Utah Ct. App.

1991); *see also Robinson v. City Ct. of Ogden, Weber County*, 185 P.2d 256, 258 (Utah 1947) (noting affidavit is necessary to establish jurisdiction).

Defendant's April 16, 2026 Declaration of Counsel in Support of OSC (Dkt. 505) satisfied this requirement. In the declaration, defense counsel identifies the alleged conduct and provides specific examples. *See* § 78B-6-301(5) (recognizing violation of court order as contempt). Defense counsel asserts that Utah County Attorney Jeff S. Gray and Deputy County Attorney Chris Ballard violated the court's pretrial publicity order (Dkt. 23) by making specific statements to various news outlets, including TMZ, USA Today, FoxNews, Politifact, and others. *See id.*

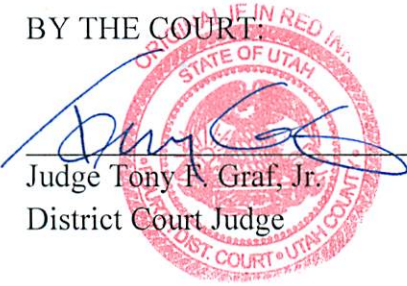
Accordingly, the court **GRANTS** Defendant's motion for order to show cause. The issuance of this order reflects a determination that Defendant has made a sufficient preliminary showing under Utah law to warrant further proceedings and does not constitute a finding of contempt. An evidentiary hearing will take place during a portion of the previously scheduled June 12, 2026 proceeding. The purpose of the hearing is to determine whether the evidence establishes the elements of contempt. *See Von Hake* at 1172 (providing civil contempt standard). Namely, whether (1) the Utah County Attorney's Office and its representatives knew what was required under the court's pretrial publicity order; (2) the Respondents had the ability to comply with that order; and (3) the Respondents, by making specific statements to various media outlets, intentionally failed or refused to comply with the pretrial publicity order. *See Von Hake* at 1172 (identifying elements of contempt).

Because Defendant seeks an order for civil rather than criminal contempt, and because the focus of the claims is on the potential impact the disseminated statements may have had on the potential jury pool, the court respectfully **DECLINES** to issue an order compelling the Utah County Attorney's Office to produce the requested discovery. *Id.* at 1168 (distinguishing purpose

of civil contempt as remedial rather than punitive). Each side will have one hour and thirty minutes to present evidence, after which the court will take the issue under advisement and issue a ruling at a future date. This is the order of the court.

Dated this 1st day of June, 2026.

BY THE COURT:



Judge Tony R. Graf, Jr.
District Court Judge

CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

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06/01/2026

/s/ SHIRLEY MOLINA

Date: _____

Signature